

tioner in this case sought review of an interlocutory order denying his claim to absolute immunity, the Court of Appeals dismissed the appeal for lack of jurisdiction. Emphasizing the "jurisdictional" basis for the Court of Appeals' decision, respondent argued that the District Court's order was not an appealable "case" properly "in" the Court of Appeals within the meaning of § 1254. We do not agree.

Under the "collateral order" doctrine of *Cohen v. Beneficial Industrial Loan Corp.*, 337 U. S. 541 (1949), a small class of interlocutory orders are immediately appealable to the courts of appeals. As defined by *Cohen*, this class embraces orders that "conclusively determine the disputed question, resolve an important issue completely separate from the merits of the action, and [are] effectively unreviewable on appeal from a final judgment." *Coopers & Lybrand v. Livesay*, 437 U. S. 463, 468 (1978); see *Cohen*, *supra*, at 546-547. As an additional requirement, *Cohen* established that a collateral appeal of an interlocutory order must "presen[t] a serious and unsettled question." 337 U. S., at 547. At least twice before this Court has held that orders denying claims of absolute immunity are appealable under the *Cohen* criteria. See *Helstoski v. Meanor*, 442 U. S. 500 (1979) (claim of immunity under the Speech and Debate Clause); *Abney v. United States*, 431 U. S. 651 (1977) (claim of immunity under Double Jeopardy Clause). In previous cases the Court of Appeals for the District of Columbia Circuit also has treated orders denying absolute immunity as appealable under *Cohen*. See *Briggs v. Goodwin*, 186 U. S. App. D. C. 179, 227-229, 569 F. 2d 10, 58-60 (1977) (Wilkey, J., dissenting on the appealability issue); *McSurely v. McClellan*, 172 U. S. App. D. C. 364, 372, 521 F. 2d 1024, 1032 (1975), *aff'd* in pertinent part en banc, 180 U. S. App. D. C. 101, 107-108, n. 18, 553 F. 2d 1277, 1283-1284, n. 18 (1976), cert. *dism'd sub nom. McAdams v. McSurely*, 438 U. S. 189 (1978).

In "dismissing" the appeal in this case, the Court of Appeals appears to have reasoned that petitioner's appeal lay